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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That**
14 **Were Not Produced In Discovery Should Be Excluded**

15 Defendant seeks an order that Plaintiff will not be allowed to utilize at trial any document or
16 other evidence he has failed to produce in discovery. This Order applies to every stage of trial.
17 Violations of this Order shall be grounds for such relief as the Court, in its discretion, deems proper, up
18 to and including the granting of a mistrial. This Order shall be made pursuant to the court’s holding in
19 *Deeter v. Angus* (1986) 179 Cal.App.3d 241.

20 If Plaintiff failed to produce documents in his possession which were requested, this clearly
21 would constitute a misuse of the discovery process. Code of Civil Procedure § 2023. Courts have found
22 that withheld evidence, including documents, is appropriately excluded because, among other reasons, it
23 “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal. App. 3d at 255. Further, this Court
24 has the authority to exclude at trial any and all evidence that Plaintiff has withheld from discovery.
25 *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

26 This motion is made pursuant to the aforementioned authorities cited above. Any attempt by
27 Plaintiff to introduce evidence not previously disclosed in discovery would be improper, highly
28 prejudicial, and fundamentally unjust. Such failure to produce documents and other evidence should

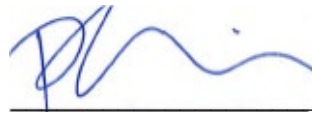
1 result in the exclusion of such evidence. Therefore, Defendant respectfully requests that the Court
2 exclude all documents and evidence, including but not limited to videos, photographs, recorded
3 materials, tangible items, or documents including audio of a 911 call purported to be related to the
4 incident, Plaintiff's documents showing past and future wage loss or other evidence that Plaintiff has
5 failed to produce in discovery.

6 **III. CONCLUSION**

7 For all the foregoing reasons, Defendant respectfully requests and moves to exclude the
8 aforementioned evidence.

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10 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

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